

IN THE UNITED STATES DISTRICT COURT
DISTRICT OF SOUTH CAROLINA
CHARLESTON DIVISION

DEBRA NELSON)
) C.A. No.: 2:25-CV-00405-RMG-MGB
Plaintiff,)
)
v.)
)
Curtiss Wright Electro Mechanical Corp.)
d/b/a Curtiss-Wright Steam and Air Solutions)
STEPHANIE LANIER, and)
SHANE SABLITSKY,)
)
Defendants.)

**PLAINTIFF'S OBJECTIONS TO MAGISTRATE JUDGE'S ORDERS (ECF NOS. 192
& 194)**

**ADDRESSED TO THE HONORABLE RICHARD M. GERGEL PURSUANT TO
FED. R. CIV. P. 72(a)**

I. INTRODUCTION

Plaintiff **Debra Nelson**, appearing pro se, respectfully submits these objections to two orders entered by Magistrate Judge Mary Gordon Baker:

- (1) the **October 20, 2025 Order (ECF No. 192)** denying Plaintiff's Motion to Compel and Motion to Strike related to the subpoena issued to nonparty **Hunt Law LLC**, and
- (2) the **October 21, 2025 Order (ECF No. 194)** denying Plaintiff's Motions to Compel Apple Inc. and granting Apple's Motion for Protective Order.

Both rulings are **clearly erroneous and contrary to law** under **Fed. R. Civ. P. 72(a)** because they misrepresent the procedural record, contradict **Judge Molly H. Cherry's prior discovery authorizations**, and improperly restrict Plaintiff's lawful access to evidence central to her claims.

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II. BACKGROUND

A. The Hunt Law LLC Subpoena (Order ECF 192)

On or about **September 25, 2025**, Plaintiff submitted a proposed subpoena to Hunt Law LLC seeking non-privileged records showing any financial or communication link between Curtiss-Wright, its counsel, and Plaintiff's former attorney.

The subpoena was held under **judicial review for nine days**, during which time **Judge Cherry's case manager confirmed that "the Judge has to review it before it can be signed."**

Following that review, the Clerk **issued and mailed the subpoena**, bearing the Court's signature and official caption. Plaintiff filed **Notices of Service** on October 8 and 9, 2025 (ECF Nos. 164 & 171).

Judge Baker's subsequent statement that "this Court did not expressly approve the subpoena" is **factually inaccurate and contradicted by the record and Court process**. The subpoena's issuance followed a judicial authorization step, not a self-issued filing.

B. Apple Protective Order (Order ECF 194)

Plaintiff's subpoena to Apple Inc. sought **device-level technical logs and access records** relevant to claims of cyber intrusion and unauthorized monitoring. Apple produced limited materials and moved for a **Protective Order**.

Without conducting an evidentiary hearing or requiring a specific showing of "good cause" under **Rule 26(c)**, Judge Baker **granted Apple's motion and prohibited Plaintiff from issuing additional discovery requests to Apple**.

This order conflicts with Judge Cherry's prior authorization for third-party subpoenas, exceeds the narrow protections permitted under Rule 26, and effectively blocks access to critical electronic evidence necessary to prove Plaintiff's claims of stalking, retaliation, and data compromise.

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III. STANDARD OF REVIEW

Under **Fed. R. Civ. P. 72(a)**, a district judge must “modify or set aside any part of a magistrate judge’s order that is clearly erroneous or contrary to law.” A finding is clearly erroneous when, although there is evidence to support it, the reviewing court is left with the definite and firm conviction that a mistake has been committed. *United States v. U.S. Gypsum Co.*, 333 U.S. 364 (1948).

IV. ARGUMENT

A. Judge Baker’s Finding That the Court Did Not Approve the Hunt Law Subpoena Is Clearly Erroneous

The docket, issuance timeline, and direct statement from the case manager confirm that the subpoena was reviewed and approved by Judge Cherry prior to issuance.

Because the Clerk cannot issue a Rule 45 subpoena for a pro se party without judicial review, Judge Baker’s later finding is demonstrably false and unsupported by any evidence.

B. The Hunt Law Order Improperly Reverses Prior Judicial Authorization

Judge Cherry’s standing order permitting Plaintiff to issue third-party subpoenas remains in effect. Judge Baker’s order, which denies the validity of that authorization without notice or findings, constitutes a **de facto reversal of a judicial act** and is contrary to established law governing magistrate review.

C. The Apple Protective Order Lacks Good Cause and Violates Rule 26(c)

Rule 26(c)(1) allows a protective order only for “good cause” shown, and requires the movant to demonstrate specific prejudice or harm. Apple presented no affidavit, evidence, or argument of undue burden beyond general inconvenience.

Plaintiff’s discovery requests were narrowly tailored to her Apple ID and specific device logs within relevant timeframes. The magistrate’s conclusion that Apple “fully complied” and that

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further discovery constituted “undue burden” is unsupported and contrary to Fourth Circuit precedent.

By prohibiting Plaintiff from issuing *any* further discovery to Apple, the Order imposes an overbroad restriction inconsistent with Rule 45(d)(3)(A) and *Virginia Dep’t of Corr. v. Jordan*, 921 F.3d 180, 189 (4th Cir. 2019).

D. Both Orders Deny Plaintiff Access to Material Evidence and Prejudice Her Case

Plaintiff’s case involves claims of electronic interference, retaliation, and unauthorized access to private data. Limiting subpoenas to former counsel and Apple effectively prevents Plaintiff from obtaining the very records that could corroborate these allegations.

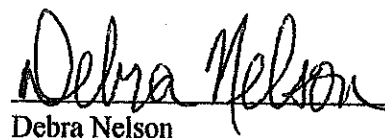
Such blanket restrictions deprive Plaintiff of due process and the right to obtain relevant, non-privileged discovery in support of her claims.

V. RELIEF REQUESTED

For these reasons, Plaintiff respectfully requests that the Honorable **Richard M. Gergel**:

1. **Vacate or modify** Magistrate Judge Baker’s Orders dated October 20 and 21, 2025 (ECF Nos. 192 & 194);
2. **Reinstate Judge Cherry’s authorization** allowing Plaintiff to issue third-party subpoenas under Rule 45;
3. **Vacate or lift the Protective Order** granted to Apple Inc. and permit continued discovery limited to relevant technical data and device-access logs;
4. Direct that future discovery disputes be reviewed by the District Judge or reassigned to ensure continuity and fairness; and
5. Grant such further relief as the Court deems just and proper.

Respectfully submitted 6th of November, 2025,


Debra Nelson

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Plaintiff, Pro Se



CERTIFICATE OF SERVICE

I hereby certify that on this 6th day of November, 2025, I served a true and correct copy of the foregoing **Plaintiff's Objection to Magistrate Judge's Orders (ECF NOS. 192 & 194)** by email addressed to:

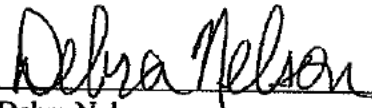
T. Chase Samples, Esq.

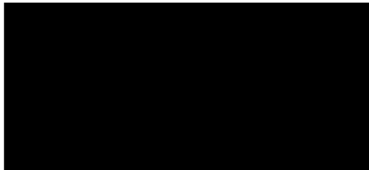
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Respectfully submitted 6th of November, 2025,


Debra Nelson
Plaintiff, Pro Se



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